

		[Citation.] The [c]onduct to be outrageous must be so extreme as to exceed all bounds of that usually tolerated in a civilized community." (<i>Nally v. Grace Community Church</i> (1988) 47 Cal.3d 278, 300.) The evidence shows none of the elements can be established. As discussed, Defendant was not aware or received notice of the alleged abuse by Jerry W. Defendant had no relationship with Plaintiff. Plaintiff has no evidence that Defendant intended to cause Plaintiff injury or engaged in conduct realizing that injury would result. Seventh Cause of Action: Battery "The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching."(<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669.) As discussed above, the evidence establishes Defendant had no contact with Plaintiff. Thus, Plaintiff cannot establish the first element. Statute of Limitations: IIED and Battery Defendant argues the second and seventh causes of action for IIED and Battery are barred by the two-year statute of limitations under Code Civ. Proc., § 335.1 because the abuse occurred during 1983-1985 and Plaintiff did not file his complaint until December 29, 2022. Plaintiff, however, commenced this action under Code of Civil Procedure section 340.1, the "revivor" statute for child sexual abuse. These causes of action arise out of the alleged child sexual abuse. None of the cases Defendant cites hold that section 340.1 does not revive causes of action that expressly arise out of or are based on alleged child sexual abuse. Therefore, Defendant has not established these claims are time barred. Based on the foregoing, Defendant has met its initial burden. Plaintiff has not filed an opposition. Therefore, he has not met his burden of establishing triable issues of material fact. Defendant's motion for summary judgment is granted.
14	Huynh v. Williams 2024-01436961 Motion to appear P:ro Hac Vice	Lloyd E. Kelley, Esq. has complied with Cal. Rules of Court, rule 940. Therefore, the unopposed application should be granted. The application of attorney Lloyd E. Kelley, Esq. to appear pro hac vice as counsel for defendant Gerard Richard Williams III in this matter is hereby GRANTED pursuant to California Rules of Court, Rule 9.40.